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Case Number: 21CHCV00695 Hearing Date: July 31, 2026 Dept: F43

Dept. F43

Hearing Date: 07-31-26

Case # 21CHCV00695, Restoration

Masters, Inc. v. Amihere

Trial Date: N/A

MOTION FOR JUDGMENT

NOTWITHSTANDING THE VERDICT OR FOR A NEW TRIAL

MOVING PARTY: Cross-Defendant Restoration Masters, Inc.

RESPONDING PARTY: Cross-Complainant David Amihere

RELIEF REQUESTED

Order granting Restoration Masters, Inc.

judgment notwithstanding the verdict in part by striking \$72,780.84 in compounding "inflation" the jury added to its damages findings for Out of Pocket and Future Economic Loss damages, \$7,500 in "inability to borrow" damages and \$2,000 in "loss of use" damages.

In the alternative, order granting a new trial on the issue of damages, conditionally denying a new trial upon Amihere's consent to a remittitur reducing the damages award to the legally supportable sum of \$212,958.16.

RULING: Motion for judgment notwithstanding the verdict is granted in part as to the Future Economic Loss damages, the Loss of Use damages, and the Inability to Borrow damages and denied in part as to the Out-of-Pocket damages. Motion for new trial is moot.

SUMMARY OF ACTION

On September 9, 2021, Restoration Masters, Inc. filed a complaint against David Alfred Amihere, alleging Mr. Amihere breached a contract for remediation, repair, and related construction services. Restoration Masters claimed Amihere failed to pay for services and materials under the contract. Mr. Amihere filed an answer on November 18, 2021, and Restoration Masters dismissed the complaint without prejudice on August 2, 2023.

On November 18, 2021, Mr. Amihere filed a cross-complaint against Restoration Masters, asserting Restoration Masters was entitled only to "Pay by Insurance Settlement" and only on the "Day When the Insurance Pay" in exchange for the work promised under the November 2019 contract. The cross-complaint asserted eleven causes of action: (1) breach of contract; (2) breach of the implied covenant of good faith and fair dealing; (3) negligence; (4) intentional misrepresentation; (5) negligent misrepresentation; (6) breach of fiduciary duty; (7) declaratory relief; (8) violation of Penal Code, § 496; (9) negligent infliction of emotional distress; (10) intentional infliction of emotional distress; and (11) cancellation of a mechanic's lien. Restoration Masters filed an answer on January 4, 2022.

The parties proceeded with jury trial on Mr. Amihere's first, second, third, fourth, and fifth causes of action. On May 29, 2026, the jury reached a special verdict on all five causes of action in Mr. Amihere's favor and awarded him \$295,239 in damages (\$53,989 for Past Economic Loss and \$241,250 for Future Economic Loss) and prejudgment interest of ten percent per annum. (5/29/2026 Minute Order at pp. 4-5.) The jury found no offset and did not award punitive damages. The court entered a judgment of \$295,239 on June 3, 2026. (6/03/2026 Judgment on Special Verdict.) Notice of the entry of judgment was electronically served on Restoration Masters that same day.

On June 17, 2026, Restoration Masters filed the instant motion for the court to grant judgment notwithstanding the verdict in part by striking \$72,780.84 in compounding "inflation" the jury added to its damages findings for Out of Pocket and Future Economic Loss (Cost of Repair), \$7,500 awarded for Inability to Borrow, and \$2,000 for Loss of Use. Restoration Masters contends the damages award is not supported by substantial evidence or by any jury instruction. In the alternative, Restoration Masters moves for a new trial on the issue of damages, on conditionally denying a new trial upon Mr. Amihere's consent to a remittitur reducing the damages award to the legally supportable sum of \$212,958.16.

On July 20, 2026, Amihere filed an opposition. Amihere contends Restoration's reliance on the declaration of juror Edward Tovar is improper attack pursuant to Evidence Code section 1150. Regardless, the substantial evidence supports the verdict.

On July 24, 2026, Restoration Masters filed a reply, asserting the Opposition fails to identify an instruction, witness, or exhibit authorizing the jury to compound its own damages findings upward by five percent per year.

REQUESTS FOR JUDICIAL NOTICE

Restoration Masters, Inc. asks the court to take judicial notice of the jury instructions issued by the court in this matter pursuant to Evidence Code section 452.

The court grants the request and takes judicial notice of the jury instructions issued in this matter pursuant to Evidence Code section 452, subdivision (d).
(Jury Instructions filed May 29, 2026.)

ANALYSIS

A. Judgment Notwithstanding the Verdict

"The court, before the expiration of its power to rule on a motion for a new trial . . . on motion of a party against whom a verdict has been rendered, shall render judgment in favor of the aggrieved party notwithstanding the verdict whenever a motion for a directed verdict for the

aggrieved party should have been granted had a previous motion been made.” (Code Civ. Proc., § 629, subd. (a).) “The trial judge’s power to grant a judgment

notwithstanding the verdict is identical to his power to grant a directed verdict.” (Hauter v. Zogarts (1975)

14 Cal.3d 104, 110 [citing Jones v. Evans (1970) 4 Cal.App.3d 115, 122; Gordon v. Strawther Enterprises, Inc. (1969) 273 Cal.App.2d 504, 515].) “The trial judge cannot weigh the evidence, or judge the credibility of witnesses. If the evidence is conflicting or if several reasonable inferences may be drawn, the motion for judgment notwithstanding the verdict should be denied.” (Id. [citing McCown v. Spencer (1970) 8 Cal.App.3d 216, 226; Hozz v. Felder (1959) 167 Cal.App.2d 197, 200].)

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“A motion for [JNOV] may be granted only if it appears from the evidence, viewed in the light most favorable to the party securing the verdict, that there is no substantial evidence in support.” (Contreras v. Green Thumb Produce, Inc. (2025) 116 Cal. App.5th 1251, 1259, citations omitted.) “If there is any substantial evidence, or reasonable inferences to be drawn therefrom, in support of the verdict, the motion should be denied.” (Hauter, supra, 14 Cal.3d at p. 110 [quoting Brandenburg v. Pac. Gas & Elec. Co. (1946) 28 Cal.2d 282, 284]; see Reynolds v. Willson (1958) 51 Cal.2d 94, 99 [as with nonsuit, a JNOV “nonsuit may be granted only where, disregarding conflicting evidence on behalf of the defendants and giving to plaintiff’s evidence all the value to which it is legally entitled, therein indulging in every legitimate inference which may be drawn from that evidence, the result is a determination that there is no evidence of sufficient substantiality to support a verdict in favor of the plaintiff.”].)

1. The Tovar Declaration is inadmissible.

Restoration Masters presents the declaration of jury foreman Edward Tovar to demonstrate the jury engaged in misconduct by taking the out-of-pocket figure of \$36,489 and enlarging it to the \$44,489 and taking a base midpoint repair cost of \$176,469.15 and enlarging it to \$241,250. Mr. Tovar claims the jury calculated the out-of-pocket amount of \$44,489 by using \$36,489 for damages and increasing that amount by five percent per year for inflation. (Declaration of Edward Tovar ¶ 3.) The Future Economic Loss of \$241,250 was calculated using the midpoint of expert Stephen Campos’s cost of repair (\$157,847) and expert MC Consultants’ cost of repair (\$195,091.31) and increasing that amount by five percent per year for inflation. (Id. ¶ 4.)

Mr. Amihere asserts the Tovar declaration is inadmissible because the declaration explains how jurors reasoned through the evidence and arrived at particular damage figures rather than identify “any external information, outside influence, improper communication, or objectively verifiable misconduct.”

“Upon an inquiry as to the validity of a verdict, any otherwise admissible evidence may be received as to statements made, or conduct, conditions, or events occurring, either within or without the jury room, of such a character as is likely to have influenced the verdict improperly. No evidence is admissible to show the effect of such statement, conduct, condition, or event upon a juror either in influencing him to assent to or dissent from the verdict or concerning the mental processes by which it was determined.” (Evid. Code, § 1150, subd. (a).)

Juror declarations describing how jurors calculated damages are generally inadmissible because they impermissibly reveal the subjective mental processes of deliberating jurors. (Maxwell v. Powers (1994) 22 Cal.App.4th 1596, 1604-1605, fn. 3 [affidavits explaining jurors’ collective mental process for calculating damages are inadmissible]; Fergus v. Songer (2007) 150 Cal.App.4th 552, 568-569, fn. 5; Mesecher v. County of San Diego (1992) 9 Cal.App.4th 1677, 1682-1685; Garfoot v. Avila (1989) 213 Cal.App.3d 1205, 1212-1213.) “The only improper influences that may be proved under section 1150 to impeach a verdict, therefore, those open to sight, hearing, and the other senses and thus subject to corroboration.” (People v. Hutchinson (1969) 71 Cal.2d 342, 342.)

However, such affidavits are allowed where jurors present objective facts which may impeach a verdict.

(People v. Hutchinson, supra, 71 Cal.2d at p. 350.) Objective facts include a bailiff’s improper statements to the jurors or a juror privately considering outside information. (Krouse v. Graham (1977) 19 Cal.3d 59, 80-82 [discussing jurors discussing attorney fees and specifically agreeing to increase verdicts to include such fees].)

Juror affidavits are also allowed where a juror statement amounts to misconduct. (Maxwell v. Powers, supra,

22 Cal.App.4th at p. 1605.) “Juror

misconduct occurs when an ‘overt event is a direct violation of the oaths, duties, and admonitions imposed on actual or prospective jurors[.]’” (People v. Alvarez (2025) 18 Cal.5th

387, 434.) The misconduct must involve intentional acts showing the jury agreed to disregard proper legal standards. (Shepard-Branom v. Diamond (2019) 39 Cal.App.5th Supp. 1, 12.) However, where the alleged misconduct arises from the way in which the jury interpreted and applied the instructions — rather than from an outside influence brought into the courtroom — such evidence is inadmissible. (Maxwell v. Powers, supra, 22 Cal.App.4th at p. 1605 [affidavit attempting to show how jurors arrived at damages figures that were on the verdict form].)

Because the Tovar Declaration states the mental process by which the entire jury calculated damages, including the basis of the calculation, without stating some objective fact or juror misconduct, the court finds the declaration discusses jury internal mental processes. Therefore, the declaration is inadmissible.

2. The substantial evidence does not directly support the amount awarded for Future Economic Loss “Cost of Repairs.”

The jury awarded Mr. Amihere Future Economic Damages of \$241,250 for the cost to repair Mr. Amihere’s property.

Restoration Masters challenges the amount as unsupported by substantial evidence based on the inadmissible Tovar declaration and a misapplication of the contingency risk and escalation fees in the experts’ calculation of costs of repair. During trial, Restoration Masters’ expert Stephen Campos calculated the cost of repair using the same scope as Amihere’s expert MC Consultants. (Pritchard Decl. ¶ 11.) Mr. Campos testified the cost of repair was \$157,847 and MC Consultants testified the cost of repair was \$195,091.31. (Id. ¶ 11.) According to Restoration Masters, the cost of repair damages cannot exceed either of these amounts.

In opposition, Mr. Amihere presents copies of the trial transcript for MC Consultants’ testimony concerning the calculation of the costs of repair for \$195,091.31.

(Declaration of Robert Ruhle ¶ 3, Exh. 1 at 119:12-124:4.) The consultant explained that on certain repair jobs like the one at issue in this matter the estimated cost of repair includes an additional percentage based on the “base” amount to account for

contingency risks and escalation of labor and material costs over time due to inflation. (Ruhle Decl., Exh. 1 at 123:15-124:4.) Mr. Amihere also presents a copy of Trial Exhibit 26 which demonstrates the breakdown of the estimated repair costs, which includes a contingency of five percent and an escalation of two-and-half percent. (Ruhle Decl., Exh. 2.) Trial Exhibit 42 reflects expert Stephen Campos' breakdown of the calculation of the costs of repair for \$157,847.22. (Ruhle Decl., Exh. 3.) Mr. Campos' calculation includes the same contingency and escalation percentages.

"[T]he cost of repairing will not provide the proper measure of damages if it exceeds the extent of the actual injury, or . . . if it exceeds the value of the property." (Pacific Gas & Elec. Co. v. San Mateo County (1965) 233 Cal.App.2d 268, 274.) Any repair cost damages award be grounded in the evidence presented at trial. (Armitage v. Decker (1990) 218 Cal.App.3d 887, 905-906.)

The court finds that the Trial Exhibits and expert testimony do not support the \$241,250 Future Economic Damages award because the award exceeds the amount supported by the evidence presented at trial. Nor do the jury instructions direct or authorize jury to increase the jury award beyond the calculations presented by the experts: "To determine whether the cost of repairing the harm is reasonable, you must decide if there is a reasonable relationship between the cost of repair and the harm caused by Restoration Master Inc.'s conduct. You must consider the expense and time involved to restore the property to its original condition compared to the value of the property in restoring the Property." (Jury Instructions at p. 50 [CACI No. 3903F].)

Viewed in a light most favorable to Mr. Amihere, the substantial evidence does not support the more the over \$40,000 increase over the \$195,091.31 amount.

Therefore, the court grants Restoration Masters' motion for judgment notwithstanding the verdict as to the Future Economic Damages "Cost of Repair."

The court reduces the Future Economic Loss damages amount to the average of the cost of repair calculations presented by the experts: \$176,469.26.

3. Although

Restoration Masters waived its right to object to the inclusion of the Loss of Use damages on the special verdict form, the substantial evidence does not support the award because the jury had no jury instruction explaining how to calculate any Loss of Use damages.

Restoration Masters contends the court should strike the \$2,000 Loss of Use damages because during a May 27, 2026, conference on jury instructions, the court ruled that Loss of Use was “out” and that the loss-of-use instruction was “inapplicable to this situation.” (Pritchard Decl. ¶ 5, Exh. 1 at 92:24-93:23.) Furthermore, no competent evidence supports the \$2,000 award.

In opposition, Mr. Amihere asserts Restoration Masters waived any objection to the jury's Loss of Use award when the verdict form was submitted before jury deliberations began. According to Mr. Amihere, a party may not remain silent, allow a verdict form to go to the jury, and then complain after an adverse verdict is returned. Mr. Amihere cites no legal authority to support this contention.

Even still, “[f]ailure to object to a verdict before the discharge of a jury and to request clarification or further deliberation precludes a party from later questioning the validity of that verdict if the alleged defect was apparent at the time the verdict was rendered and could have been corrected.” (Keener v. Jeld-Wen, Inc. (2009) 46 Cal.4th 247, 263-264 [quoting Henriouille v. Marin Ventures, Inc. (1978) 20 Cal.3d 512, 521].) This principle has been consistently applied in the context of special verdict forms. (See Zagami, Inc. v. James A. Crone, Inc. (2008) 160 Cal.App.4th 1083, 1093-1094 [failing to timely object to special verdict form risk waiver].)

Here, Restoration Masters forfeited its objection to the inclusion of the “Loss of Use” line on the special verdict form by failing to object before jury deliberations and at the time the special verdict was rendered. A review of the transcript from the jury instructions conference indicates the court removed Jury Instruction CACI No. 3903G for Loss of Use because Mr. Amihere had already been

paid by the insurance company for the loss of use of his home. (Pritchard Decl. ¶ 5, Exh. 1 at 93:2-5, 93:20-23.) The court clarified

instruction No. 3903G refers to the “reasonable cost to rent property when [Mr. Amihere] could not use his own property” and noted Mr. Amihere had “loss of use” listed as items of economic damage in instruction number 3903 (discussing the smoke damage issue). Because the court announced the removal of instruction number 3903G and the loss of use line item appeared on the face of the special verdict form before jury deliberations began, Restoration Masters was on notice of the defect both before and at the time the verdict was entered. Restoration Masters presumably reviewed and implicitly accepted a verdict form that still contained a “Loss of Use” line.

Regardless, the substantial evidence does not support the \$2,000 “loss of use” damages award. During trial, Mr. Amihere testified that while he was trying to take care of the smoke problem he stayed in hotels for almost two weeks and paid \$2,326.06 for hotel rooms. (Ruhle Decl., Exh. 4 at 137:22-138:13.) Although Mr. Amihere testified about the hotel fees, the jury had no basis for calculating the fees without any jury instruction for doing so. Even if the \$2,000 award was based on the hotel fees, the only other place where the amount could be included is the Out-of-Pocket Expenses award (\$44,489). Neither Restoration Masters nor Mr. Amihere clarify whether the \$2,000 was included as part of the Out-of-Pocket Expenses.

Therefore, the court grants Restoration Masters’ motion for judgment notwithstanding the verdict as to the \$2,000 Loss of Use amount, and strikes the \$2,000 from the damages award.

4. Restoration

Masters presents no admissible evidence demonstrating the Out of Pocket Expenses award is not supported by substantial evidence.

Restoration Masters contends that the five percent annual inflation rate included in the Out of Pocket Expenses award is not supported by jury instructions, witness testimony, or any other evidence.

In opposition, Mr. Amihere asserts the five percent annual interest is supported by expert testimony and Trial Exhibits applying a five percent contingency risk and a two-and-a-half percent escalation fee to the

cost of labor and materials in order to account for inflation. (Opposition at p. 6:16-27; Ruhle Decl., Exhs. 1, 2, 3.)

Without the Tovar declaration, Restoration Masters cannot meet its evidentiary burden on this issue.

Therefore, the court denies Restoration Masters' motion for judgment notwithstanding the verdict as to the Out of Pocket Expenses award.

5. The Inability to Borrow award is not supported by substantial evidence.

Restoration Masters contends the \$7,500 "inability to borrow" award should be stricken because the substantial evidence does not support the award. Mr. Amihere sought damages for inability to borrow but the court excluded the only documentary proof of the damages, a bank letter known as Trial Exhibit 32. (Pritchard Decl. ¶ 6.) Mr. Amihere represented that the letter denied or conditioned a loan on Mr. Amihere paying Restoration Masters. Although Mr. Amihere testified he sought a home-equity line of credit, he never provided a quantification of damages or any expert testimony on the damages associated with his inability to borrow funds.

In opposition, Mr. Amihere presents his testimony that after Restoration Masters failed to properly repair the house, Restoration placed a mechanics lien on his property which caused him to need an attorney and to experience financial difficulties. (Ruhle Decl., Exh. 4 at 141:25-142:24, 143:6-24.)

The substantial evidence does not directly support the \$7,500 award, and the jury instructions did not direct the jury on how to calculate the amount. Although the court excluded the bank letter, Mr. Amihere's testified that he applied for a home equity loan which was declined and that he was approved for another loan on the condition that he pay the \$107,000 owed to Restoration Masters. (Ruhle Decl., Exh. 4 at 142:19-24, 143:6-9.) In order to pay the lien and his attorney fees, Mr. Amihere borrowed \$60,000 through a personal loan and \$50,000 from his retirement. (Ruhle Decl., Exh. 4 at 143:16-17; Pritchard Decl., Exh. 1 at 101:10-19.) However, these funds were used to pay the mechanic's lien and Mr.

Amihere's attorney. Mr. Amihere does not state the amount he attempted to borrow for the home equity loan or the other loan that was conditioned on his payment of the mechanic's lien. Without this information, the substantial evidence does not support the \$7,500 award.

Therefore, the court grants Restoration Masters' motion for judgment notwithstanding the verdict as to the Inability to Borrow damages and strikes \$7,500 from the damages award.

Therefore, Restoration Masters' motion for judgment notwithstanding the verdict is granted in part as to the Future Economic Loss damages, the Loss of Use damages, and the Inability to Borrow damages. The motion is denied in part as to the Out of Pocket damages.

The motion for a new trial is moot.

CONCLUSION and ORDER

Restoration Masters' motion for judgment notwithstanding the verdict is granted in part as to the Future Economic Loss damages, the Loss of Use damages, and the Inability to Borrow damages. The motion is denied in part as to the Out of Pocket damages.

The court amends the damages award as follows: Loss of Use damages are reduced to \$0.00; Inability to Borrow Money damages are reduced to \$0.00; and Future Economic Loss damages for Cost of Repair are reduced to \$176,469.26.

The revised damages amount is: \$220,958.26

Motion for a new trial is moot.

Restoration Masters, Inc. to give notice.